

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2023CUPP012195: JAMES WALD, et al. vs TRAVIS EDWARD MARTIN, et al.
09/11/2026 in Department 42**

Motion to Vacate the July 29, 2026 Order and for Reconsideration on the Court's Own Motion

Motion: Defendant Donna Martin's Motion to Vacate the July 29, 2026 Order and for Reconsideration on the Court's Own Motion; Alternative Motion under Code of Civil Procedure Section 473(b) (*Opposed*)

Tentative Ruling:

The Court finds good cause to lift any stay applicable to this motion under Code of Civil Procedure section 391 for the purposes of deciding the instant motion. There is no harm or prejudice to any party or the court by deciding this motion now.

Defendant's Request for Judicial Notice is GRANTED in part. The Court takes judicial notice of the existence and filing of Exhibits 1 through 8 as records of this action (Evid. Code, § 452, subd. (d)), and of the official Court of Appeal assignment reflected in Exhibit 9 (Evid. Code, § 452, subds. (c), (h)). The Court gives any actual admissions in responses to requests for admission the conclusive effect required by Code of Civil Procedure section 2033.410, subdivision (a), according to the precise matter admitted. The Court otherwise does not accept the truth of disputed factual assertions in transcripts, interrogatory responses, briefing, or declarations.

Defendant Donna Martin's Motion to Vacate the July 29, 2026 Order and for Reconsideration on the Court's Own Motion is DENIED. The alternative request for relief under Code of Civil Procedure section 473, subdivision (b), is also DENIED.

Under *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107-1109, a party may bring a claimed error in an interim ruling to the Court's attention, and the Court retains authority to reconsider such a ruling on its own motion. Donna's request goes far beyond what is anticipated in *Le Francois* – it is a formal motion for reconsideration, not an informal invitation to the court to correct an error. The motion is inappropriate and Donna is admonished that the Court will not entertain challenges to interim orders via formal motions under *Le Francois*.

Moreover, the Court disagrees with the asserted errors or that the July 29 ruling should be vacated or modified. Liberally construed, the FAC sufficiently alleges that P.W. was entrusted to Donna's care and that Donna knew of the danger posed by Travis, permitted him access to P.W., and failed to protect or intervene. (FAC, ¶¶ 16, 18, 39, 53-59.) The judicially noticed admissions do not conclusively negate those theories.

The remaining asserted errors concerning intentional infliction of emotional distress, punitive damages, property ownership, and the prayer likewise do not warrant vacatur. Whether Plaintiffs can prove the pleaded allegations may be tested by an appropriate dispositive motion or at trial.

Defendant has also not shown entitlement to discretionary relief under section 473, subdivision (b). Although Donna states that she could not understand the oral tentative ruling, the issues she identifies were presented in her written papers, and the adverse ruling was not shown to have resulted from the asserted surprise.

Opposing party to give notice.